

		Palmer in Support of Plaintiffs’ Response to Defendants and Non-Party KBS Holdco, LLC dba Regency Outdoor Advertising’s Objection to Report and Recommendation of Discovery Referee UNDER SEAL. NOTE: The Court notes Plaintiff filed a Notice of Lodging Documents Conditionally Under Seal on 3/9/26 (ROA #1845) referencing the Conditionally Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third Party Michael Tidus. However, no such document has been received by the Court. Plaintiff is directed to electronically submit the Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third-Party Michael Tidus pursuant to this order. The redacted versions of these filings will remain as a publicly accessible record of this case. THESE RULINGS ARE FINAL Plaintiffs to give notice of each ruling.
2.	Ramirez vs. Laurelmont Community Association 24-01419703	Motion for Leave to File Amended Complaint Plaintiffs Christina Ramirez and Kenneth Johnson’s motion for leave to file a Third Amended Complaint is GRANTED. (Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [“policy of great liberality in permitting amendments”]; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [“[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment”].) Defendant ServiceFirst Restoration, Inc., the only party who has opposed the motion, has not substantiated any claimed prejudice, nor shown any other grounds to deny the motion sufficient to overcome the liberal policies favoring amendment. Further, whether the proposed new claims are legally sufficient, or factually meritorious, may be determined later. (<i>Kittredge Sports Co. v. Superior Court</i>, <i>supra</i> at 1048 [“the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings”].)

		Moving plaintiffs shall separately and electronically file and serve the proposed Third Amended Complaint (Ex. A to moving papers), within five court days. Separate e-filing is required to ensure the pleading is properly indexed in the court’s electronic filing system. The Case Management Conference scheduled for August 13, 2026, is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Moving plaintiffs shall give notice.
3.	Powell vs. Daryani 25-01526978	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Bijan Daryani, Asad Daryani, and Cars 4 Movie, LLC’s demurrer to plaintiff Christopher Powell’s First Amended Complaint [FAC] is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) The demurrer on grounds of uncertainty is OVERRULED. (Code Civ. Proc., § 430.10, subd. (f).) The FAC is not “so incomprehensible that a defendant cannot reasonably respond.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695, internal quotes omitted; see also <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [“We strictly construe such demurrers because ambiguities can reasonably be clarified under modern rules of discovery”].) Further, moving parties’ arguments as to the propriety of punitive damages and/or rescission should have been addressed by a motion to strike, not a demurrer. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 [“a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy”]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”].) <u>1st C/A: breach of contract.</u> This cause of action fails to state sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) The FAC fails to allege how the contract, the attached “EBay Motors Vehicle Purchase Agreement,” was breached. Rather, the factual allegations only address fraud / concealment. (FAC, ¶ BC-2; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4-6.)